

Tentative Rulings for June 9, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2304959	CHRISTOPHER NEIL ENTERPRISES, INC. VS SUSSMAN	MOTION TO CONTINUE ON CROSS-COMPLAINT OF CHRISTOPHER NEIL ENTERPRISES MOTION TO CONTINUE TRIAL AND ALL RELATED DATES BY GAUSTON CORP.

Tentative Ruling: Hearing taken off calendar by court. Court approved stipulation and order to continue trial on March 10, 2026 rendering this motion moot, which was filed February 20, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2500795	MANSOORI VS WALMART, INC.	MOTION TO COMPEL DEFENDANT VINTAGE ASSOCIATES INC'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS SET ONE BY MANSORA MANSOORI

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 AM in Department PS2.

This is a personal injury action. Plaintiff Mansora Mansoori was picking up an order from Walmart, Inc. located at 34500 Monterey Avenue, Palm Desert, California on February 4, 2023. While walking through the parking lot, Plaintiff unexpectedly tripped on a protruding tree stump and fell. Plaintiff sustained injuries.

On January 30, 2025, Plaintiff filed her Complaint against Walmart and developer/property management company, Rothbart Development Corporation. On August 14, 2025, Plaintiff filed a DOE Amendment naming Vintage Associates, Inc. as a co-defendant.

On September 30, 2025, Plaintiff served an initial set of written discovery upon Defendant Vintage Associates, Inc. including Demand for Production of Documents, Form Interrogatories, Special Interrogatories, and Requests for Admission. Defendant provided objection-only responses on January 14, 2026.

Plaintiff now brings the instant motion to compel Defendant Vintage Associates, Inc. to provide further responses to Demand for Production of Documents is set to be heard on June 9, 2026. Plaintiff also seeks monetary sanctions against Defendant for having to bring the instant motion.

In Opposition, Defendant asserts it has provided supplemental responses to all requests at issue making the instant motions moot. Defendant also argues monetary sanctions are not appropriate and the amount requested is excessive and unreasonable.

In Reply, Plaintiff states Defendant provided unverified further responses on the same day Plaintiff's Reply was due (June 1, 2026). Plaintiff argues this means no supplemental responses have been provided yet so the motions are not moot.

Motion to Compel Further Response(s)

Under CCP §§ 2031.310(b)(2), 2030.300(b)(1), 2033.290(b)(1) a motion to compel further responses must be accompanied by a meet and confer declaration. The motions are accompanied by the declaration of Attorney Robert L. Booker II, who sent one email to opposing counsel after receiving the objection-only responses. (Booker Decl. ¶¶8-9.) It does not appear that

the parties meaningfully met and conferred about these issues. However, since Defendant has provided supplemental responses, the lack of meet and confer prior to bringing the motions is inconsequential.

Where a response to an inspection demand has been made, but the demanding party is not satisfied with the response, the remedy is a motion to compel further responses. (CCP §2031.310.) This motion must be served within 45 days after service of a verified response (extended if served by mail, overnight delivery or fax or electronically; see CCP §§ 1010.6(a)(3), 1013). Otherwise, the demanding party waives the right to compel any further response to the CCP § 2031.010 demand. (CCP §§ 2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) The 45-day time limit is mandatory and “jurisdictional,” meaning the court has no authority to grant a late motion. (*Sexton v. Sup. Ct. (Mullikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410.) The 45-day deadline runs from the date the verified response is served, not from the date originally set for production or inspection. (CCP §2031.310(c); *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 902.) The deadline may be extended by written stipulation of the parties. (CCP §2031.310(c).)

Defendant asserts it has provided supplemental responses to the demands at issue. In Reply, Plaintiff says Defendant only provided unverified responses which are “tantamount to no responses at all.” (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

Plaintiff is correct that unverified responses do not constitute supplemental responses. However, clearly Defendant is willing to provide supplemental responses. One additional opportunity will be granted. Hearing will be continued with the parties ordered to meet and confer about Defendant’s supplemental responses and a notice of withdrawing hearing if verified responses are provided.

Sanctions

As to the issue of sanctions, the Court retains discretion to impose sanctions for the reasonable expenses incurred in bringing a motion to compel, even if the requested discovery is ultimately provided after the motion is filed. (CRC Rule 3.1348(a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409.) Defendant appears to have only provided supplemental responses because Plaintiff filed the instant motions. However, since Plaintiff did not make a good faith meet and confer effort prior to bringing the motions, sanctions are not warranted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503169	DOE VS PALM SPRINGS UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT OF JOHN DOE BY PALM SPRINGS UNIFIED SCHOOL DISTRICT

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

Plaintiff John Doe, a five-year-old minor, by his mother and natural guardian Angelica Melgar, sued the Palm Springs Unified School District (“District”) and Agua Caliente Elementary for alleged sexual assault by another student. On April 28, 2025, Plaintiff filed his Complaint, alleging the following four causes of action against the District and Agua Caliente Elementary: 1st cause of action (negligent hiring, supervision, and retention); 2nd cause of action (negligent failure to educate, train, or warn); 3rd cause of action (vicarious liability); and 4th cause of action (Civil Code, §§ 51, 52).

In his Complaint, Plaintiff alleges that, during class, a school teacher let him use the single stall classroom bathroom. (Complaint, ¶ 15.) Plaintiff further alleges that, while he was in the restroom, the teacher heard Plaintiff's call for help and found another student in the restroom with Plaintiff's pants pulled down. (Complaint, ¶ 16.) Based on these alleged facts, Plaintiff asserts that the District failed its duty to adequately hire, supervise, and retain the school personnel that left Plaintiff alone to be assaulted. Plaintiff also asserts that the District failed in its duty to educate, train, supervise, notify, and warn parents and the agents of the District and the school regarding prevention, detection, and reporting of child abuse. Based on such failure of duties, Plaintiff asserts that the District violated his rights under the Unruh Civil Rights Act (Civ. Code, § 51(b).)

Defendant District now demurs to the Complaint to all causes of action on the ground the District cannot be directly liable for Plaintiff's injuries based on its breach of any mandatory duty found under statute.

Demurrer

Defendant did not satisfy its obligation to meet and confer in accordance with CCP §§ 430.41(a) and CCP § 435.5(a) and to file an appropriate declaration. CCP §§ 430.41 and 435.5 require that parties meet and confer by telephone or in person, regardless of the prospects of an informal resolution.

Here, the Declaration of defense counsel(s) indicates that on April 3, 2026, counsel wrote to plaintiffs counsel detailing their position on pleading errors subject to a demurrer and motion to strike and requesting that the parties meet and confer. (Declaration, ¶4.) No response from Plaintiff.

Defendant and Plaintiff's counsel are ordered to meet and confer by telephone, video conference or in person for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer and motion to strike. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the First Amended Complaint. Plaintiffs shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the First Amended Complaint may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 10 days before the continued hearing date set forth above do one of the following:

- (1) vacate the hearing on the demurrer and motion to strike and file an answer to the First Amended Complaint;
- (2) file with the court a declaration stating that the parties have agreed that Plaintiffs will file a Second Amended Complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and motion to strike that the parties were unable to resolve.

The court will not accept further briefing.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503169	DOE VS PALM SPRINGS UNIFIED SCHOOL DISTRICT	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JOHN DOE BY PALM SPRINGS UNIFIED SCHOOL DISTRICT

Tentative Ruling: Hearing continued to July 28, 2026 at 8:30 a.m. in Department PS2.

Plaintiff John Doe, a five-year-old minor, by his mother and natural guardian Angelica Melgar, sued the Palm Springs Unified School District ("District") and Agua Caliente Elementary for alleged sexual assault by another student. On April 28, 2025, Plaintiff filed his Complaint, alleging the following four causes of action against the District and Agua Caliente Elementary: 1st cause of action (negligent hiring, supervision, and retention); 2nd cause of action (negligent failure to educate, train, or warn); 3rd cause of action (vicarious liability); and 4th cause of action (Civil Code, §§ 51, 52).

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- (2) file with the court a declaration stating that the parties have agreed that Plaintiffs will file a Second Amended Complaint before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer and motion to strike that the parties were unable to resolve.

The court will not accept further briefing.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503660	F.J. ZAM COMPANY, INC VS R.D. OLSON CONSTRUCTION, INC	MOTION TO CONSOLIDATE ON 1ST AMENDED COMPLAINT OF F.J. ZAM COMPANY, INC., BY R.D. OLSON CONSTRUCTION, INC.

Tentative Ruling: Granted.

Instant matter is consolidated with CVPS2301220 as the lead case number. Consequently, the instant matter will be stayed under the lead case number with a Status Hearing currently set for September 22, 2026.

Defendant R.D. Olson moves to consolidate the instant matter with related case CVPS2301220.

Plaintiff opposes.

The court must consolidate the instant matter as it is one of many related lawsuits arising from a common set of facts involving a construction project in the City of La Quinta.

Moving party to provide notice pursuant to CCP 1019.5.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2601659	STELLANTIS FINANCIAL SERVICES, INC VS ATTANASSOVA	HEARING ON NOTICE OF APPLICATION FOR WRIT OF POSSESSION - CLAIM AND DELIVERY BY STELLANTIS FINANCIAL SERVICES, INC.

Tentative Ruling: Hearing taken off calendar by moving party on June 5, 2026.